

END-USER LICENSE AGREEMENT

RPG Character Generator

5th Gear Productionz™

Effective Date: April 22, 2026

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PART 1

CLICKWRAP LICENSE SUMMARY — RPG Character Generator

Copyright © 2026 5th Gear Productionz™. All rights reserved.

Please review the following summary of the key terms governing your use of Character Generator. This summary is provided for convenience only; your use of the Software is governed by the full End-User License Agreement.

- **License.** You are granted a non-exclusive, non-transferable, revocable license to install and use Character Generator on authorized devices in accordance with your license tier. This license does not constitute a sale of the Software.

- **Restrictions.** You may not reverse engineer, decompile, disassemble, redistribute, sublicense, rent, lease, lend, or modify the Software. You may not circumvent any copy protection or digital rights management mechanisms. You may not remove or alter any copyright notices or proprietary markings.
- **Your Content.** You retain ownership of original content you create using the Software, subject to any output licensing terms specified by the Company.
- **No Warranty.** The Software is provided “AS IS” and “AS AVAILABLE” without warranties of any kind, whether express or implied, including but not limited to implied warranties of merchantability, fitness for a particular purpose, and non-infringement.
- **Limitation of Liability.** The Company’s total liability to you shall not exceed the amount you paid for the Software in the twelve (12) months preceding any claim. The Company shall not be liable for any indirect, incidental, special, consequential, or punitive damages.
- **Termination.** The Company may terminate your license if you breach any term of the Agreement. Upon termination, you must cease all use and destroy all copies of the Software.
- **Governing Law.** This Agreement is governed by the laws of the Commonwealth of Virginia, United States.
- **Full Agreement.** Your use is subject to the full End-User License Agreement available at [insert full EULA URL].

ACCEPTANCE

By clicking “I Agree,” you acknowledge that you have read, understood, and agree to be bound by the full End-User License Agreement. If you do not agree, click “I Decline” and do not install or use the Software.

PART 2

END-USER LICENSE AGREEMENT — RPG Character Generator

Copyright © 2026 5th Gear Productionz™. All rights reserved.

Effective Date: April 22, 2026

This End-User License Agreement (“Agreement”) is a legal agreement between you (“User,” “You,” or “Your”) and 5th Gear Productionz™ (“Company,” “We,” “Us,” or “Our”) for the use of the Character Generator software application (“Software”). By installing, copying, or otherwise using the Software, you agree to be bound by the terms of this Agreement. If you do not agree, do not install or use the Software.

1. Definitions

- 1.1 “Software”** means the Character Generator application, including all updates, upgrades, patches, hotfixes, documentation, help files, associated media, and any copies thereof, whether provided at the time of initial installation or made available subsequently by the Company.

- 1.2 “License”** means the limited, non-exclusive, non-transferable, revocable right granted to the User under this Agreement to install and use the Software in accordance with the terms and conditions set forth herein.
- 1.3 “User”** means the individual or entity that has accepted this Agreement and has been granted a License to use the Software.
- 1.4 “Authorized Device”** means a single computer, workstation, or other electronic device on which the User is permitted to install and operate the Software, as determined by the license tier purchased.
- 1.5 “Subscription”** means a recurring payment arrangement under which the User is granted access to the Software for a defined billing period (monthly or annually), subject to renewal and the payment terms set forth in Section 7.
- 1.6 “Trial Period”** means a limited duration during which the User may access and evaluate the Software at no charge, subject to the terms of Optional Clause A, if activated.
- 1.7 “Beta Version”** means any pre-release, beta, early access, or preview version of the Software made available by the Company for testing and evaluation purposes, subject to the terms of Optional Clause C, if activated.

2. License Grant

- 2.1 Grant of License.** Subject to the terms and conditions of this Agreement, the Company hereby grants the User a non-exclusive, non-transferable, revocable license to install and use the Software on a single Authorized Device, or on such number of devices as permitted by the license tier purchased by the User.
- 2.2 License Type.** The License granted hereunder is personal to the individual User unless the User has purchased an organizational or enterprise license, in which case the License extends to the authorized number of users within the organization as specified in the applicable order form or license agreement addendum.

- 2.3 No Sale.** This License does not constitute a sale of the Software or any copy thereof. The Company retains all right, title, and interest in and to the Software, including all intellectual property rights therein.

3. Permitted Uses

Subject to the terms and conditions of this Agreement, the User is permitted to:

- 3.1** Install and operate the Software on Authorized Devices in accordance with the license tier purchased.
- 3.2** Make one (1) backup copy of the Software for archival purposes only, provided that such copy includes all copyright notices and proprietary markings contained in the original.
- 3.3** Use the Software to create character assets, designs, and related output for both personal and commercial projects, subject to any output licensing terms specified by the Company and published on the Company's website or within the Software documentation.

4. Restrictions

The User shall not, and shall not permit any third party to:

- 4.1** Reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, algorithms, or underlying structure of the Software, except to the extent expressly permitted by applicable law notwithstanding this limitation.
- 4.2** Redistribute, sublicense, rent, lease, lend, sell, resell, or otherwise transfer the Software or any rights therein to any third party without the prior written consent of the Company.
- 4.3** Modify, adapt, translate, or create derivative works based upon the Software or any portion thereof.

- 4.4 Circumvent, disable, or otherwise interfere with any copy protection, digital rights management (DRM), license validation, or other security mechanisms incorporated into the Software.
- 4.5 Use the Software for any unlawful purpose or in violation of any applicable local, state, national, or international laws or regulations.
- 4.6 Remove, alter, obscure, or deface any copyright notices, trademarks, proprietary markings, or other identification appearing on or within the Software.

5. Ownership and Intellectual Property

- 5.1 **Company Ownership.** The Software, including all copies, modifications, enhancements, and derivative works thereof, is and shall remain the sole and exclusive property of 5th Gear Productionz™. All intellectual property rights in and to the Software, including but not limited to copyrights, trademarks, trade secrets, and patents, are reserved by the Company.
- 5.2 **Copyright.** Copyright © 2026 5th Gear Productionz™. All rights reserved. The Software is protected by copyright laws and international copyright treaties, as well as other intellectual property laws and treaties.
- 5.3 **User Content.** The User retains all right, title, and interest in and to original content created by the User using the Software, including character assets, designs, and related output (“User Content”). The foregoing is subject to any output licensing terms specified by the Company and published on the Company’s website or within the Software documentation. Nothing in this Agreement shall be construed as transferring to the Company any ownership rights in User Content.

6. Updates, Upgrades, and Patches

- 6.1 The Company may, at its sole discretion, develop and release updates, upgrades, patches, hotfixes, or other modifications to the Software (collectively, “Updates”). The Company is under no obligation to develop or release any Updates.

- 6.2** Certain Updates may be required for the continued use of specific features or functionality of the Software. The Company may, at its discretion, require the User to install Updates as a condition of continued access.
- 6.3** All Updates shall be governed by the terms and conditions of this Agreement unless such Updates are accompanied by separate license terms, in which case those separate terms shall govern.

7. Payment and Subscription Terms

- 7.1 Fees.** If applicable to the license tier selected, the User shall pay all fees associated with the License in accordance with the pricing published by the Company at the time of purchase or as set forth in the applicable order form.
- 7.2 Non-Refundable.** All fees paid are non-refundable except as required by applicable law or as otherwise expressly provided by the Company in a separate refund policy.
- 7.3 Price Changes.** The Company reserves the right to change its pricing at any time upon thirty (30) days' prior written notice to the User. Such notice may be provided by email, in-app notification, or publication on the Company's website.
- 7.4 Failure to Pay.** Failure to pay any fees when due may result in the suspension or termination of the User's License, at the sole discretion of the Company.

8. Warranty Disclaimer

- 8.1** THE SOFTWARE IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. THE COMPANY HEREBY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.
- 8.2** THE COMPANY DOES NOT WARRANT THAT THE SOFTWARE WILL MEET THE USER'S REQUIREMENTS, THAT THE OPERATION OF THE SOFTWARE WILL BE

UNINTERRUPTED OR ERROR-FREE, THAT DEFECTS WILL BE CORRECTED, OR THAT THE SOFTWARE IS FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS.

- 8.3** THE USER ASSUMES ALL RISK AS TO THE QUALITY AND PERFORMANCE OF THE SOFTWARE. SHOULD THE SOFTWARE PROVE DEFECTIVE, THE USER ASSUMES THE ENTIRE COST OF ALL NECESSARY SERVICING, REPAIR, OR CORRECTION.

9. Limitation of Liability

- 9.1** IN NO EVENT SHALL 5TH GEAR PRODUCTIONZ™, ITS AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, LICENSORS, OR SUPPLIERS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO DAMAGES FOR LOSS OF PROFITS, REVENUE, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR THE USE OF OR INABILITY TO USE THE SOFTWARE, REGARDLESS OF THE THEORY OF LIABILITY (WHETHER IN CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE) AND EVEN IF THE COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
- 9.2** THE COMPANY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE SOFTWARE SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY THE USER TO THE COMPANY FOR THE SOFTWARE IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.
- 9.3** Some jurisdictions do not allow the exclusion or limitation of certain damages. In such jurisdictions, the Company's liability shall be limited to the maximum extent permitted by applicable law.

10. Indemnification

- 10.1** The User agrees to indemnify, defend, and hold harmless 5th Gear Productionz™ and its affiliates, officers, directors, employees, agents, licensors, and suppliers (collectively, the "Indemnified Parties") from and against any and all claims, demands,

actions, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or in connection with:

- (a) the User's use or misuse of the Software;
- (b) the User's violation of any term or condition of this Agreement;
- (c) the User's violation of any applicable law, rule, or regulation; or
- (d) the User's infringement of any intellectual property or other right of any third party.

11. Termination

11.1 Termination for Breach. The Company may terminate this Agreement immediately upon written notice to the User if the User breaches any material term or condition of this Agreement. The Company may also terminate this Agreement if the User fails to cure a non-material breach within fifteen (15) days after receiving written notice thereof.

11.2 Effect of Termination. Upon termination of this Agreement for any reason, the User shall immediately cease all use of the Software and shall destroy all copies of the Software in the User's possession or control, including any backup copies. The User shall, upon request, certify in writing to the Company that all copies have been destroyed.

11.3 Survival. The following sections shall survive the termination or expiration of this Agreement: Section 5 (Ownership and Intellectual Property), Section 8 (Warranty Disclaimer), Section 9 (Limitation of Liability), Section 10 (Indemnification), Section 12 (Governing Law and Jurisdiction), Section 13 (Dispute Resolution), and Section 18 (Severability).

12. Governing Law and Jurisdiction

12.1 This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia, United States, without regard to its conflict of law principles.

12.2 Any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in Fairfax County, Virginia, and each party irrevocably consents to the personal jurisdiction and venue of such courts.

12.3 *Note to the Company: The governing law jurisdiction and venue may be changed to reflect a different state, territory, or country as needed before finalizing this Agreement for use.*

13. Dispute Resolution

13.1 Good-Faith Negotiation. The parties agree to first attempt to resolve any dispute, controversy, or claim arising out of or relating to this Agreement through good-faith negotiation for a period of thirty (30) days following written notice of the dispute by one party to the other.

13.2 Binding Arbitration. If the dispute is not resolved through good-faith negotiation within the thirty (30)-day period, the dispute shall be submitted to and finally resolved by binding arbitration administered by the American Arbitration Association (“AAA”) under its Commercial Arbitration Rules then in effect.

13.3 Location. The arbitration shall take place in Fairfax County, Virginia, unless the parties mutually agree to a different location.

13.4 Costs. Each party shall bear its own costs and expenses in connection with the arbitration, including attorneys’ fees, unless the arbitrator determines that the circumstances warrant an award of costs to the prevailing party.

13.5 Injunctive Relief. Notwithstanding the foregoing, either party may seek injunctive or other equitable relief in any court of competent jurisdiction for the protection of its intellectual property rights, including but not limited to copyrights, trademarks, and trade secrets.

14. Export Controls

- 14.1** The User agrees to comply with all applicable export and re-export control laws and regulations, including without limitation the U.S. Export Administration Regulations (“EAR”) administered by the U.S. Department of Commerce, Bureau of Industry and Security, and sanctions regulations administered by the U.S. Department of the Treasury, Office of Foreign Assets Control (“OFAC”).
- 14.2** The Software may not be exported or re-exported to any country, entity, or person to which such export or re-export is prohibited by applicable law, including but not limited to countries subject to U.S. trade embargoes or sanctions, or to any person or entity on any applicable denied parties list.

15. Privacy and Data Collection

- 15.1** The Company’s collection, use, storage, and disclosure of personal data in connection with the Software is governed by its Privacy Policy, available at [TBA].
- 15.2** By installing and using the Software, the User consents to the collection and processing of data as described in the Privacy Policy, to the extent such consent is required by applicable law.
- 15.3** The Company may collect anonymous, aggregated usage data and diagnostic information for the purpose of improving the Software, analyzing trends, and administering the service. Such data shall not personally identify the User.

16. Third-Party Components

- 16.1** The Software may include or incorporate third-party libraries, frameworks, components, or other software (“Third-Party Components”) that are subject to their own respective license terms and conditions. The User’s use of such Third-Party Components is governed by the applicable third-party license agreements.
- 16.2** A list of Third-Party Components and their respective license terms is available upon written request to the Company at the contact information provided in Section 20.

17. Force Majeure

- 17.1** Neither party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent that such failure or delay results from causes beyond its reasonable control, including but not limited to acts of God, natural disasters, fire, flood, earthquake, epidemic or pandemic, acts of government or governmental authority, war, terrorism, civil unrest, labor disputes, power failures, internet service disruptions, or failures of third-party service providers (each, a “Force Majeure Event”).
- 17.2** The affected party shall provide prompt written notice of the Force Majeure Event and shall use commercially reasonable efforts to mitigate its effects and resume performance as soon as practicable.

18. Severability

- 18.1** If any provision of this Agreement is found by a court of competent jurisdiction or arbitrator to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, or if such modification is not possible, such provision shall be severed from this Agreement. The invalidity, illegality, or unenforceability of any provision shall not affect the validity, legality, or enforceability of the remaining provisions of this Agreement, which shall continue in full force and effect.

19. Entire Agreement

- 19.1** This Agreement, together with any applicable order forms, addenda, and the Privacy Policy referenced herein, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, representations, and communications, whether oral or written, relating to the Software.

19.2 No amendment, modification, or waiver of any provision of this Agreement shall be effective unless in writing and signed by both parties. No failure or delay by either party in exercising any right or remedy shall constitute a waiver thereof.

20. Contact Information

For questions, concerns, or notices regarding this Agreement, please contact:

5th Gear Productionz™

Bowling Green, KY 42101

Email: 5thGearProductionz@gmail.com

Phone: 270-266-1349

Website: [TBA]

PART 3

OPTIONAL CLAUSES — Activate as Applicable

Note:

The following clauses are optional and should be activated by including them in the main Agreement when applicable to the specific product offering. When activated, these clauses are incorporated by reference into the full End-User License Agreement and are subject to all other terms and conditions thereof.

Optional Clause A: Trial Period

- A.1** The Company may, at its sole discretion, offer a free trial period of 30 days, (the “Trial Period”) during which the User may access and evaluate the Software.
- A.2** During the Trial Period, the User shall receive either a limited-feature or full-featured License, as determined by the Company.
- A.3** At the end of the Trial Period, the License shall automatically expire unless the User purchases a Subscription or perpetual License. Upon expiration, the User shall cease all use of the Software.
- A.4** The Company reserves the right to limit trial availability, including but not limited to restricting trial offers to one trial per user, per device, or per household.
- A.5** Trial use is subject to all other terms and conditions of this Agreement.

Optional Clause B: Automatic Renewal

- B.1** If the User subscribes to Character Generator under a Subscription plan, the Subscription shall automatically renew at the end of each billing cycle (monthly or annually, as applicable) unless the User cancels the Subscription at least 3 days before the next renewal date.
- B.2** Upon renewal, the Company will charge the payment method on file at the then-current renewal rate. The User is responsible for ensuring that payment information on file is accurate and up to date.
- B.3** The Company will provide notice of any price changes at least thirty (30) days before the next renewal date. Such notice may be provided by email, in-app notification, or publication on the Company’s website.
- B.4** The User may cancel automatic renewal at any time through account settings within the Software, or by contacting customer support at the email address provided in Section 20.

Optional Clause C: Beta / Pre-Release Software

- C.1** The Company may, from time to time, offer beta, pre-release, early access, or preview versions of Character Generator (collectively, “Beta Software”) for testing and evaluation purposes.
- C.2** Beta Software is provided “AS IS” without warranty of any kind and may contain bugs, errors, defects, or incomplete features. Beta Software is not intended for production use.
- C.3** The Company makes no warranties regarding Beta Software and assumes no liability for any damages, data loss, or other harm arising from the User’s use of Beta Software.
- C.4** The User agrees to provide feedback, bug reports, and other information as reasonably requested by the Company in connection with the User’s evaluation of the Beta Software.
- C.5** The Company may discontinue, modify, or withdraw Beta Software at any time without prior notice and without liability to the User.
- C.6 Confidentiality.** The User may be required to keep Beta Software features, functionality, performance characteristics, and related information confidential until the Company publicly releases the corresponding version of the Software. The Company will notify the User of any confidentiality obligations at the time Beta Software is made available.